

Consulting Agreement

GyanSys Infotech Private Limited

&

Mr. Akhter Khalid



This agreement made and entered into on **07th October 2025** by and between:

GyanSys Infotech Pvt Ltd, a Company incorporated under the Companies Act, 1956 and having its Office at 11th Floor, Tower – A, Prestige Shantiniketan Tech Park, Whitefield Main Road, Bangalore 560048 and hereinafter referred to as “the company” (which expression shall unless it be repugnant to the context or contrary to the meaning thereof be deemed to mean and include their successors and assigns) on the ONE PART.

Akhter Khalid, Bangalore, India hereinafter referred to as “**CONSULTANT**” (which expression shall unless it is repugnant to the context or contrary to the meaning hereto be deemed to mean and include his / her legal heirs, executors and administrators) of the OTHER PART.

WHEREAS the Company requires the personalized special services of a person specialized in the area of **Microsoft Applications**.

AND WHEREAS the Company has decided to appoint a CONSULTANT for the purpose of meeting its requirements.

AND WHEREAS the party of the Second part has offered to provide his / her specialized services as a CONSULTANT to meet the requirements of the Company.

AND WHEREAS the Company has accepted the said offer and agreed to engage the party of the Second Part as its CONSULTANT to carry out the assignment on the following terms and conditions:

NOW THEREFORE THIS AGREEMENT WITNESSETH AND IT IS HEREBY AGREED BY AND BETWEEN THE PARTIES HERETO AS UNDER:

1. APPOINTMENT AS CONSULTANT:

The Company hereby appoints the Party of the Second Part as a **Consultant**.

2. TENURE OF THE AGREEMENT:

This agreement is planned to come into force on **07th October 2025** subject to the start date of the said assignment and shall continue till **31st October 2026** unless determined earlier as hereinafter provided. This agreement if not renewed shall stand terminated on the expiry of the aforesaid period unless the terms has been extended for further period(s) by mutual consent of the parties hereto by giving 30 days of notice in writing prior to the expiry hereof or earlier termination hereof or as hereinafter provided.

3. DUTIES AND RESPONSIBILITIES OF THE CONSULTANT:

- a. It shall be the duty of the CONSULTANT to use his best endeavors to successfully carry out the assignment.
- b. To provide such assistance and support to the Company as and when so required by the Company from time to time.
- c. In addition to the execution of the assignments it shall be the responsibility of the CONSULTANT to assist the Company in completing the documentation, scrutiny, and other arrangements.

4. STIPULATION TO THE CONSULTANT'S RIGHTS:

The CONSULTANT shall not have any power to enter into any contract or agreement with any other party having dealing with Company or carryout similar business as that of the Company and the CONSULTANT shall not represent the Company as its agent and the Company shall not be bound by any commitments made by the CONSULTANT to any third party.



5. CONSIDERATION PAYABLE TO THE CONSULTANT:

As regards the assignment to be performed by the CONSULTANT, the Company shall pay the CONSULTANT a sum of maximum **INR 1000 per hour**. This amount shall be paid on a pro-rata basis based on the actual number of hours billed in the given month.

- a. The consideration will be paid only on the submission of Client Approved Timesheets and the Invoice by the last day of the month.
- b. Undisputed dues shall be payable to the CONSULTANT by cheque or online transfer on 7th day of every month on successful submission of date of receipt of the invoice.
- c. Regarding the disputed invoice the Company will send a written communication with the exact reason for the dispute. Upon rectification of the dispute the vendor needs to resubmit the invoice.
- d. Any applicable statutory deductions and taxes will be deducted from the above fees.

6. CONSULTANT TO COMPLY WITH INSTRUCTIONS OF THE COMPANY:

- a. While the CONSULTANT is entitled to use his discretion in executing the assignment to the best of his ability, the CONSULTANT shall carryout the assignment in conformity with the instructions, and general, specific, or special that may be provided by the Company as and when the issues are referred to the CONSULTANT. Such instructions may be amended by the Company from time to time and the same shall be communicated to the CONSULTANT who shall comply with the same.
- b. The CONSULTANT shall always act strictly as per law and without violating any law and secure the best interest of the Company. If he so desires, he may seek further clarifications from the Company on all or any particular matter or transaction.
- c. The Company may in its absolute discretion accept or reject any proposal or reject any suggestions or opinion rendered by the CONSULTANT and the decision of the Company shall be final in that regard.

7. DOCUMENTS TO BE RETURNED BY CONSULTANT IN THE EVENT OF TERMINATION OF THE AGREEMENT:

In the event of the termination of the Agreement by either party for any reason whatsoever the CONSULTANT shall forthwith return to the Company all the documents/papers/monies/authorization letters/properties/Company Assets belonging to the company and/or held by the CONSULTANT on behalf of the Company. The CONSULTANT shall be responsible or liable for any loss or damage caused by not returning papers/amounts/properties of the Company promptly on termination of this agreement.

8. EXCLUSIVITY:

The CONSULTANT shall work exclusively with the Company and during the engagement S/he will not be engaged in any other transaction, business, or activity whatsoever either for commercial or noncommercial reasons without prior approval from the Company.

The CONSULTANT shall very clearly understand that this Agreement entered between the / company and the CONSULTANT does not provide any exclusive right to the CONSULTANT to get contract assignment from the Company and the Company is free to engage any other CONSULTANT or CONSULTANT for undertaking similar or otherwise assignments and enter into Agreement(s) with any other person / firm / Company as may be deemed fit to the Company.

9. NO RELATIONSHIP OF MASTER AND SERVANT OR COMPANY AND CONSULTANT:

This Agreement shall be governed by the specific provisions as laid down in the Agreement and nothing contained in this Agreement or any instructions / guidelines that may be issued by the Company from time to time shall be constructed to create any relationship of Master and Servant or Company and CONSULTANT as between the Company on the one hand and the CONSULTANT on the other. The parties understand clearly and agree that this agreement covers only specific assignments to be carried / performed by the CONSULTANT.



10. INDEMNITY:

- a. The CONSULTANT shall indemnify the Company and keep the Company indemnified against any loss or claim or damages that any other persons whomsoever may make against any loss or claim or damages that any other persons whomsoever may make against the Company in respect of any act of omission or commission which the CONSULTANT or his representative(s) have done which is contrary to or in breach of the terms of this Agreement and / or any instructions that may be given to the company.
- b. The Company shall not be liable to indemnify or be liable or responsible for any loss or damages which the CONSULTANT may suffer by reasons of the CONSULTANT having acted contrary to or in breach of the terms of this agreement and / or any instructions that may be given by the Company. The CONSULTANT shall indemnify and keep the Company indemnify against any loss or claim or damages that any other person whatsoever may incur against the Company or even that which the Company may suffer by reason of misuse of authority given hereunder.

11. CONFIDENTIALITY:

All communications between the parties or any of them all information and other material supplied to or received by or sent by the CONSULTANT from/to company and/or any information concerning the business transaction coming to the knowledge of the CONSULTANT and/or the confidential relationship between the Company and the CONSULTANT and any other person shall be kept confidential by the CONSULTANT unless it is absolutely essential for the CONSULTANT to disclose them with the specific approval of the Company.

12. INTELLECTUAL PROPERTY RIGHTS:

The CONSULTANT agree that, except with respect to Personal Works (defined below), the Company or a Connected Entity owns all rights, title, and interest in and to all work performed, and all materials, creations, designs, technology, discoveries, inventions, ideas, information, and other tangible or intangible matter (whether or not patentable or copyrightable), conceived, developed or created by me, alone or with others, during the period of my engagement with the Company, including, but not limited to, all related copyright, trade secret, patent, trademark, and other intellectual property rights (the "Creations"). To the maximum extent permitted by applicable law, the Creations shall be deemed works made for hire under India copyright or applicable laws or any equivalent laws of applicable foreign jurisdictions, and all rights, title, and interest in and to the Creations shall vest automatically in the Company or a Connected Entity, as determined by the Company.

The CONSULTANT hereby assigns and irrevocably agree to assign all right, title, and interest including, but not limited to, patent, copyright, trade secret, trademark, and other proprietary rights, in and to such Creations to the Company or a Connected Entity, as determined by the Company (as to copyright, to the extent such Creations are held not to be works made for hire under applicable law). The Company or a Connected Entity, as determined by the Company, will have the sole right, in its own name, to obtain, hold, register, and otherwise perfect, protect and enforce (including bringing actions for past or future infringement of) all rights relating to the Creations, including, but not limited to, any renewals or extensions thereof.

The CONSULTANT will (a) promptly notify the Company in writing of any Creations, and deliver to the Company the tangible form of all Creations (including any copies); and (b) provide the Company and any person designated by the Company or a Connected Entity, at the expense of the Company or a Connected Entity, any assistance and cooperation requested by the Company or a Connected Entity to obtain, hold, register, and otherwise perfect, protect, and enforce (including bringing actions for past or future infringement of) all rights relating to the Creations, including, but not limited to, executing written instruments and serving as a witness. If, in breach of my obligations under this Agreement, the CONSULTANT use any Creations or Proprietary Information in conceiving, developing or creating any materials, creations, designs, technology, discoveries, inventions, ideas, information or other tangible or intangible matter after termination of my engagement with the Company, CONSULTANT acknowledge and agree that such tangible or intangible matter constitutes, at the sole discretion of the Company or



a Connected Entity, Creations subject to the assignment requirement, and the other terms and conditions, of this Agreement.

Only a Creation that meets all of the following criteria would be considered a personal work ("Personal Work"): (a) it is conceived, developed, and created by CONSULTANT on his own time without using the equipment, supplies or facilities of the Company or a Connected Entity or any Proprietary Information or other Creations, (b) it is unrelated to the actual or reasonably anticipated business or research and development of the Company or a Connected Entity of which CONSULTANT become aware, and (c) it does not result from any work performed by CONSULTANT for the Company or a Connected Entity. The obligations noted above in paragraph 5 do not apply to Personal Works.

CONSULTANT will not provide the Company or a Connected Entity with any Personal Works without prior written authorization of the Company.

Any assignment of copyright hereunder includes all rights of paternity, integrity, disclosure and withdrawal and any other rights that may be known as or referred to as "moral rights" (collectively "Moral Rights"). If, despite the above, CONSULTANT is deemed under applicable law to retain any rights including without limitation any Moral Rights, CONSULTANT hereby waives, and agrees to waive, all such rights. To the extent that such waivers are deemed unenforceable under applicable law, CONSULTANT grant, and agree to grant, to the Company or its designees the exclusive, perpetual, irrevocable, worldwide, and royalty-free license to use, modify and market such rights, without identifying him/her or seeking his/her consent. CONSULTANT agrees that my obligation to render any cooperation for the foregoing shall continue even after termination of my relationship with the Company.

Upon demand by the Company, CONSULTANT shall immediately deliver /hand over all information/ material relating to the Creations in my possession, in a tangible form and to the satisfaction of the Company or Connected Entities.

13. NON-SOLICITATION:

The following non-solicitation provisions are designed to protect the investment of the Company and all Connected Entities in their clients and CONSULTANTS, valid business needs in today's competitive marketplace. Nevertheless, this Agreement is not intended to limit a CONSULTANT's ability to pursue a professional career upon leaving the Company.

- a. **Non-Solicitation of Clients.** CONSULTANT acknowledges that, because of the nature of my work for the Company or a Connected Entity, my solicitation or serving of certain clients related to my work for the Company or a Connected Entity would necessarily involve the unauthorized use or disclosure of Proprietary Information of the Company or a Connected Entity, and the proprietary relationships and goodwill of the Company or a Connected Entity, and, in the case of my serving of certain clients, could compromise the full compliance of the Company or any Connected Entities with the laws, rules and regulations of the U.S. or India, or independence-related requirements of a government regulatory body. Accordingly, during the period of his/her engagement with the Company and for one year thereafter, CONSULTANT will not, directly, or indirectly, solicit or provide services to any client of the Company or a Connected Entity to which he/she provided (or participated in a proposal to provide) services during the three-year period prior to termination of his/her engagement with the Company.

In this regard, CONSULTANT acknowledges and agrees that the market for the kinds of services S/he rendered or will render as part of my work for the Company or a Connected Entity reaches throughout, and in certain instances beyond, India and that the Proprietary Information which has been and will be provided to him/her relates to similar kinds of services rendered by the Company or a Connected Entity throughout, and in certain instances beyond, India and therefore the geographic scope of this Agreement is reasonable and is designed to protect the Company's or a Connected Entity's legitimate business interests in the preservation of Proprietary Information.



- b. **Non-Solicitation of Personnel.** CONSULTANT acknowledges that, because of the nature of my work for the Company or a Connected Entity, my solicitation or hiring of any partner, principal, member, officer or CONSULTANT of or any contractor to the Company or a Connected Entity, or my participation in their hiring, admission or retention, as the case may be, would necessarily involve the unauthorized use or disclosure of Proprietary Information of the Company or a Connected Entity, and the proprietary relationships and goodwill of the Company or a Connected Entity. Accordingly, during the period of his engagement with the Company and for two year thereafter, CONSULTANT will not, directly or indirectly, (a) solicit or attempt to solicit, or participate in the solicitation of or any attempt to solicit any partner, principal, member, officer or CONSULTANT of the Company or a Connected Entity to leave the Company or a Connected Entity, or to join any firm or business with which CONSULTANT may be or become affiliated, or (b) participate in the hiring or admission of any partner, principal, member, officer or CONSULTANT of the Company or a Connected Entity, or (c) cause a contractor of the Company or a Connected Entity to cease providing services to, with, or on behalf of the Company or such Connected Entity.

14. ASSIGNMENT:

This Agreement is exclusive to the parties and the CONSULTANT shall not assign his rights hereunder to any person or party without the explicit prior written consent of Company in this regard.

15. NOTICE IN WRITING:

Any notice by either party to the other shall be in writing and delivered to the address of the other party given here in above.

16. NON-PERSISTENCE IS NOT A DEEMED WAIVER:

Any forbearance, waiver or failure of the Company to insist upon the performance of this Agreement shall not constitute waiver by the Company of any subsequent breach nor shall such waiver prejudice, affect or restrict the rights of the Company hereunder.

17. AMENDMENT:

This Agreement represents the entire Agreement between the parties and shall be capable of variation only in writing by a note of amendment signed by both parties in this regard.

18. TERMINATION:

- i. This Agreement can be terminated by the CONSULTANT by providing 30 days of notice in writing to the Company. During the continuity of the Agreement, the assignment hereunder may be terminated at any time by the Company by giving to the CONSULTANT 30 days of notice in writing without assigning any reasons, therefore.
- ii. The company may also terminate the Agreement immediately without any consideration at any time hereafter on the happening of any one or more of the following events:
 - a. Should the CONSULTANT become incapable of carrying out the terms of the Agreement or his duties here under.
 - b. Should the CONSULTANT become bankrupt or make compositions with his creditors or should his position at any time be such that in the opinion of the Company it is inexpedient for the CONSULTANT to continue to act as its CONSULTANT.
 - c. Should execution be levied upon the CONSULTANT's goods or property.
 - d. Should the CONSULTANT commit a breach of any of the terms and conditions stipulated in this Agreement.
 - e. Should the CONSULTANT misrepresent the Company or do any such act or deed which is detrimental to the interest of the Company.



- f. Should it come to the notice of the Company that the CONSULTANT is rendering similar services to any of its competitors.
- g. Should the CONSULTANT fail to achieve the targets assigned to him by the Company.

19. ARBITRATION AND JURISDICTION:

In the event of any dispute or disagreement over the interpretations of any of the terms here in above contained the same shall be referred to any Arbitrator nominated by the Company, whose decision shall be final and binding upon all the parties hereto. Such reference shall be deemed to be a submission to arbitration under the Indian Arbitration and Conciliation Act, 1996, or of any modification or re-enactment thereof. The venue of arbitration shall be Bangalore, India subject to the jurisdiction of courts in Bangalore which shall have exclusive jurisdiction in proceedings to enforce arbitration agreement and not for enforcement of the award, to the exclusion of all other courts. IN WITNESS WHEREOF THE PARTIES HERETO HAVE SUBSCRIBED THEIR SIGNATURE ON THE DAY, MONTH AND YEAR MENTIONED ABOVE IN TOKEN OF HAVING ACCEPTED THE ABOVE TERMS AND CONDITIONS.

20. APPLICABLE LAW AND JURISDIC:

Even though the Company may depute the CONSULTANT overseas for on-site work or to any other location in India. the exclusive jurisdiction for any legal matter and dispute shall be courts of Bengaluru, Karnataka.

For GYANSYS INFOTECH PVT LTD



Dharmesh Kalaiah
Sr. Manager - Human Resources
(First Party)

For Akhter Khalid

Akhter Khalid
(Second Party)